

Criminal Misc.No.3605-B/2013

Muhammad Yousaf @ Bhola.

The State, etc.

26-04-2013 Mr. Aazam Nazir Tarar, Advocate for the petitioner.
Mr. Muhammad Nawaz Shahid, DDPP for State.
M/s. Muhammad Taqi Khan & Sted Kaleem Ahmad
Khurshid, Advocates for the complainant.
Mazhar Iqbal, S.I. with record.

Muhammad Yousaf, the accused-petitioner seeks post arrest bail in case FIR No.60-2012, dated 15.03.2012 registered under Sections 302, 148/149 PPC at P.S. Karyanwala, District Gujrat.

2. The allegation against the petitioner is that on 14.03.2012 at about 11.45 p.m. he while armed with firearm along with his co-accused formed unlawful assembly in the area of Kurayanwala and in furtherance of their common object attacked on Javed Iqbal Shakir, husband of complainant and present petitioner made fire-shot from his klashankov hitting on lower lip and there-after Sohail Azam, co-accused made fire-shots landing on right shoulder of victim, who succumbed to the injuries suffered by him at the spot.

3. Learned counsel for the petitioner has contended that the petitioner has been involved in this case with malafide intention, which is evident from the facts that the complainant concealed the relationship with present petitioner, who was first cousin of the petitioner; that it

was unseen occurrence at night time and all the accused including the petitioner have been nominated falsely on the basis of some suspicion; that the occurrence was taken place on 14.03.2012 and at that time the petitioner was present in his house; that during the investigation, the petitioner was found innocent and challan has been submitted by placing him in column No.2 thereof and in spite of that the petitioner has been made scapegoat and all the accused-persons have been let off during the investigation; that on failure of relief, the complainant has also filed a private complaint which also makes out a case of the petitioner as one of further inquiry; that no recovery has been affected from the petitioner. Learned counsel for the petitioner has relied upon "Subeh Sadiq @ Saabo @ Kalu. Vs. The State, etc." (2011 S.C.M.R. 1543) and "Muhammad Fazal, etc. Vs. Saeed-ullah Khan, etc." (2011 S.C.M.R. 1137).

4. The instant petition has been opposed by learned DDPP assisted by learned counsel for the complainant while emphasizing that the petitioner is nominated accused of the FIR with specific role for making fire-shot of firearm hitting on the lower lip of the deceased, who succumbed due to fatal injuries suffered by him at the spot; that the opinion of I.O. declaring the petitioner innocent is based on no plausible evidence, which is not binding upon the Courts; that 18-empties were recovered from the place of occurrence; that the petitioner was placed in column No.2 but he was not recommended for the discharge from the case by Investigating Officer; that deeper appreciation of the facts cannot be considered at bail stage and it is a tentative assessment. In view of above circumstances, the petitioner has committed the heinous

offence by committing the murder of the deceased; therefore, he is not entitled to the concession of bail.

5. Arguments heard and record perused.

6. Allegedly, the petitioner is nominated accused of the promptly lodged FIR with specific role for committing the murder of Javed Shakir, husband of the complainant with brutal manners. The occurrence was taken place on 14.03.2012 at about 11.45 p.m and the matter was reported to the police at 12.40 a.m. on 15.03.2012. There is no chance of consultation or deliberation for involvement of the petitioner-accused. The petitioner along with his co-accused Sohail Azam while armed with klashankov committed brutal murder of Javed Shakir while making fire-shots of klashankov upon him and due to fatal injuries he succumbed at the spot, which fact is corroborated by the prosecution witnesses through their statements got recorded under Section 161 Cr.P.C. which is also supported by the medical evidence. As far as the arguments advanced by learned counsel for the petitioner that the petitioner is summoned in private complaint and he is entitled for bail, has no force as the complainant-wife of the deceased in her private complaint had also reiterated her version qua the said role of the accused. The accused had already been summoned in the private complaint to face trial. Mere summoning of the petitioner in private complaint by the learned trial Court has not made him entitled to the concession of bail. On perusing the record, I am of the affirmed view that there is reasonable ground to believe that the petitioner is fully involved in the commission of offence and the alleged plea of *Ali-bai* of the accused-petitioner is a question to be determined by learned trial

Court after recording the evidence and appraisal thereof and same requires deeper appreciation, which is not required at bail stage. The Court was not bound to *Ipsi-dixi* of the police and mere fact that name of the petitioner was placed in column No.2 of challan could not *Ipsa-facto* makes the case of further inquiry. The case law cited by the learned counsel for the petitioner is not applicable to the facts and circumstances of the present case.

Resultantly the instant petition having no merits is hereby **dismissed.**

(Aalia Neelum)
Judge

Approved for Reporting

Judge

***R.Yousaf**